

(2001) 94 Cal.App.4th 540 and *Hearn v. Howard* (2009) 177 Cal.App.4th 1193. Notably, those cases both dealt with service at private post office box rental stores, not service at a former address. However, the relationship that can be inferred here is sufficiently similar because the person residing in the home owned by defendants had a duty to forward mail, particularly if they did not notify the post office of any change.

The declaration of Rebecca Davis states, “we have a friend living at the property.” (Declaration of Rebecca Davis in Support of Motion, ¶15.) Neither Rebecca Davis nor Matthew Davis deny that the friend is the person who received the papers, that defendants “still get mail” at the Minert Road address, or that they the friend did, in fact, forward the papers to them. Neither defendant submits any evidence of having changed their mailing address with the United States Postal Service.

Pursuant to these facts, plaintiff has shown defendants were served at their “usual mailing address” for purposes of section 415.20, subdivision (b). However, the evidence does not indicate reasonable diligence was employed to first attempt to “personally deliver” the summons and complaint. (Code Civ. Proc., § 415.20 (b).) Because such reasonable diligence was required as a condition to substitute service, the motion is granted.

15. 9:00 AM CASE NUMBER: C25-03424
CASE NAME: PAUL RHONE, JR. VS. CHEVRON U.S.A. INC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CHEVRON U.S.A. INC
TENTATIVE RULING:

Hearing vacated by stipulation of the parties.

16. 9:00 AM CASE NUMBER: C25-03424
CASE NAME: PAUL RHONE, JR. VS. CHEVRON U.S.A. INC
MOTION TO STRIKE PORTIONS OF PLTFs COMPLAINT
FILED BY: CHEVRON U.S.A. INC
TENTATIVE RULING:

Hearing vacated by stipulation of the parties.

17. 9:00 AM CASE NUMBER: C25-03480
CASE NAME: ANNA ROWE VS. LYNN SHAFER
***HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES**
FILED BY: SHAFER, LYNN FREDERICK
TENTATIVE RULING:

Unopposed –granted.